OVERTIME POLICY

Objective

Partners' overtime policy is applicable to those employees who have an FLSA (Fair Labor Standards Act) designation of non-exempt indicated on their offer letter or memo to file. It is also indicated on the job description. All employees will need to adhere to the pertinent clause below based on their exemption:

Exempt Employees:

Exempt employees are not eligible for overtime under any circumstances.

Non-Exempt Employees:

Non-exempt employees while eligible per law to charge overtime may not charge any overtime per Partners' policy unless pre-approved in writing from their supervisor and if applicable their grants officer. The compensation for overtime is one-and-one half (1½) times the employee's normal hourly rate for all time worked over 40 hours in any particular work week.

Partners' work week is seven (7) consecutive days, beginning on Monday at 12:00 am and ending on Sunday at 11:59 pm. The normal work schedule for all full-time employees is an eight (8) hour day, five (5) consecutive days a week beginning on Monday.

All non-exempt employees can only work 40 hours per work week (including vacation, sick and annual leave time). If a non-exempt employee has more than 40 hours in a work week without prior written approval, the hours above 40 will be paid at 1½ the hourly rate; however disciplinary action may be incurred. Please reference page 27 for Partners' disciplinary action policy.

Non-Exempt Administrative Staff

For any non-exempt staff charging his/her time to administrative units, no overtime is allowed. The employee and his/her supervisor will need to monitor the timesheet so the employee does not incur more than 40 hours in a work week. This means that working days may need to be adjusted per individual to accommodate late meetings, business travel, trainings, etc. to ensure they do not cross the threshold of 40 hours each work week.

Non-Exempt Program Staff

For any non-exempt staff charging his/her time to programs, they may be eligible for overtime if pre-approved in writing from both his/her supervisor and the grants officer. Please note governmental grants cannot be charged any overtime per USG Regulations, however if written

consent is given from the grants officer in a signed letter/memo then Partners can charge additional time over 40 hours.

Any situation in which the grants officer does not approve a request for overtime and Partners believes it is critical to the success of the project; it will be reviewed on a case by case basis. If approved, the first 40 hours worked would need to be expensed to the grant and any additional hours over 40 would need to be expensed to an administrative unit. Business travel (as referenced below) cannot put an employee into overtime status, therefore working days may need to be adjusted per individual to accommodate business travel, late meetings, training, etc. to ensure they do not cross the threshold of 40 hours each work week.

Non-Exempt Employees and Business Travel, Seminars and Trainings

When a non-exempt employee is on travel, their travel time must be taken into consideration. Commute time to and from work (i.e. Partners' International Office) is not considered time worked. However, when traveling during normal work hours is part of the job activity or when travel is necessary from meeting to meeting, it is time worked. When it comes to business travel this also means from the moment an employee leaves his/her house until the time they are settled into their accommodation at his/her destination, he/she must be paid for all hours traveled. Therefore Partners recommends that non-exempt staff only travel Monday-Friday and not on weekends. While on business travel, the employee should be paid for all hours that they would normally be in office. For example if an employee's standard work week is Monday-Friday from 9AM-5PM, while on travel the employee should be paid during that time period, unless on any form of leave. While on business travel employees will not be compensated for time sleeping or meals, unless the meal is part of a meeting, as this is not considered hours worked. However, if an employee is on business travel and has meetings/work scheduled outside of normal business hours, he/she will need to include that time as time worked on his/her timesheet. For example, an employee on travel hosts a dinner meeting from 7PM-9PM; he/she should be compensated for those two hours. They should then adjust their work schedule that week to ensure they do not exceed 40 hours.

Any non-exempt employee attending lectures, meetings, training programs and similar activities are viewed as working time unless all of the following criteria are met:

1. Attendance is outside of the employee's regular working hours;
2. Attendance is in fact voluntary;
3. The course, lecture, or meeting is not directly related to the employee's job; and
4. The employee does not perform any productive work during such attendance.

Basic rule of thumb is to consider if the company or individual is paying for the training

Non-Exempt Employees and After Hours Work

A non-exempt employee is never expected to work outside of their set 40 hours a week under any circumstances. This includes abstaining from working on projects at home before or after normal business hours, answering emails (via laptop, cell phone, etc.) outside of office hours while at home or late at night. If an employee continues to work after they are clocked out for the day or before they clock in, they may be subject to disciplinary action as the tasks done outside of the normal work schedule must be counted towards hours worked.

Non-Exempt Employees and Work from Home & Comp Time

A non-exempt employee is eligible to work from home during normal business hours during each work week. However employee must not continue to work from home after they are clocked out for the day.

Non-exempt employees are not eligible for Comp Time as mentioned in the Partner's employee handbook. Non-exempt employees are eligible for overtime if authorization is obtained and therefore comp time is not applicable to employees in this category.

Non-Exempt Employees and Timesheets

A non-exempt employee must clock in and out every day at the start and end of work for all hours they are on duty. The employee must clock out if they are stopping work for at least 30 minutes, anything less is considered a break and counted as time worked. If the employee wishes to eat lunch at their desk and continues to work, these hours must be considered time worked. If an employee chooses not to take lunch breaks he/she must monitor his/her time to not cross the threshold of 40 hours.

For timesheet purposes, the smallest increment in which an employee can clock in or out for is 15 minutes. Therefore all-time punches for non-exempt employee should be rounded to the nearest 15 minute marker.

Supervisor's Expectations for Non-Exempt Employees

Doing Work off the Clock

Basic rule: The supervisor is responsible for reviewing employee timesheets. If the supervisor knew or should have known work was being done off the clock it needs to be reflected on the timesheet. It is illegal not to pay for work performed off the clock, even if it was not previously approved and/or authorized. Employees may perform a variety of potentially compensable job-related activities during their "off-the-clock" time, such as: taking work home, making/receiving job-related telephone calls at home, working before or after

regular hours, job-related "volunteer" work, however the supervisor should monitor these activities to ensure all appropriate time worked is compensated.

Breaks and Lunches

When it comes to non-exempt employees and lunches, you do not have to pay him/her for meal periods, nor does this time count for overtime purposes, as long as employees are completely relieved of work duties during the meal period. Short break of 5-20 minutes are offered for every 4 hours worked and therefore count as time worked. The employee should not clock out on his/her timesheet for these breaks; however lunch breaks of 30 minutes or more will require the employee to clock in and out if they are completely relied of their duties. If the employee eats lunch at their desk and continues to work, these hours must be considered paid time worked.

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